

EMPLOYMENT OF TEMPORARY EMPLOYEES

The Loudoun County School Board seeks to employ substitute candidates with relevant and high-quality qualifications and experience to support the needs of the Division.

A. Definitions.

1. Temporary Employee. Employees who are paid hourly, and who work as needed. Temporary employees may only be hired to fill designated temporary assignments. Each temporary assignment shall be for a maximum of one year. Employees affected by this regulation include employees hired for temporary assignments, school-based substitutes, non-school-based temporary employees, and summer employees. Temporary duties may not be undertaken during the employee's regular work hours.

2. Temporary Assignment. Employees who hold full-time or less-than-full-time positions may be hired for temporary assignments before or after their regular work hours or times outside the contracted school day or academic school year. Examples of these temporary assignments include but are not limited to summer temporary assignments, curriculum development assignments, test proctors, athletic coaches, and tutors.

3. Student Teachers/Teachers in Training. The school division shall accept student teachers only from accredited institutions. All student teachers shall meet the same hiring requirements as all other personnel. Student teachers will be hired as substitute teachers and can be employed as such in accordance with their program and LCPS requirements.

4. Non-school-based Temporary Employees. Employees filling in for absent employees or vacant positions that occur outside of the classroom or beyond the approved academic school calendar. Examples of these temporary employees include central office administrative assistants, professional, technical, custodial, maintenance, transportation, food services, and athletic training substitutes.

5. School-based Substitutes. Individuals who are at least 18 years old and hold a high school diploma or have passed a high school equivalency examination approved by the Virginia Board of Education, and are employed **during the academic school year** either to:

- a. Fill in for an absent contracted licensed or non-exempt employee, assignment qualifies for a substitute as determined by the Chief of Schools, for a temporary period of time, OR
- b. Filling a vacant licensed or non-exempt position that qualifies for a substitute as determined by the Chief of Schools for a temporary

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period of time, but for no longer than 90 instructional days in that vacancy, unless otherwise provided by law or approved by the Chief of Schools on a case-by-case basis, during one school year.

B. General Guidelines for Temporary Employees.

1. Hiring Requirements.

- a. Temporary employees shall be subject to the same hiring requirements as required for regular LCPS employees, including but not limited to, Employment Eligibility Verification form I-9, fingerprinting, a name search of the sex offender registry, and tuberculin testing.
- b. All temporary employees must meet the applicable minimum qualifications required by the Virginia Board of Education and must be approved, cleared, and hired by Human Resources and Talent Development (HRTD) before working.
- c. Temporary employees are non-exempt, on-call employees who are not guaranteed work or any particular assignment.
- d. Unless the employee's employment agreement states otherwise, temporary employees are "at will," meaning that the employee may resign and the employer may terminate temporary hourly employment at any time, with or without cause. School-based substitutes auto-renew each term or session unless the employee or LCPS terminates employment.
- e. All substitutes must be briefed on security protocols via the [Security Briefing Checklist](#).

2. Compensation.

- a. Employees assigned temporarily may be paid by contract, employment agreement, or using the appropriate hourly pay band.
- b. Substitutes may be paid a daily rate established by the School Board without regular fringe benefits. Substitutes will not be issued contracts and temporary services are not considered part of a probationary term leading to a continuing contract.

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C. School-Based Substitutes.1. General Employment Procedures.

- a. Position Description. Substitutes provide continuity for the classroom instructional program. Substitutes assume the responsibility for all aspects of the classroom, including implementing teacher-created lesson plans, and aim to provide continuity for learning in the classroom. Substitutes working in assignments outside of the classroom (administrative assistants, financial technicians, administrators) provide for the continuity of the daily operations of the school.
- b. Substitutes are expected to follow all school and classroom policies, procedures, and expectations outlined by the LCPS and the VDOE.
- c. Substitutes are only permitted to work within the specifically assigned hours of the instructional day. They are prohibited from working more than 40 hours per week unless otherwise approved by the Level Director. This includes if the substitute has a secondary job assignment in addition to the substitute role. Assignments are paid at the rate approved by the School Board.
- d. Some substitute positions may require certifications or additional training before starting an assignment. Training will be organized and compensated for by the department responsible.
- e. During the academic school year, requests for daily substitutes for all school-based teachers and non-exempt staff must be completed in the substitute management system. Requests for substitutes beyond the academic school year must be approved and managed by the relevant Level Director.
- f. Unless otherwise provided for in this regulation, substitutes are only to be used to cover staff who are absent from their primary assignment and will not be approved to provide additional coverage that is not already assigned to a school or location.
- g. School administrators should use the appropriate reason code in the absence management system when notating the use of a substitute, as reflected in the "[Intended Use of Reason Codes for Substitutes Chart.](#)"

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2. Assignments and Eligible Positions.

- a. Daily Substitute Assignments. Substitute assignments that do not exceed ten (10) consecutive working days for the same employee. Daily substitutes are responsible for implementing employee-directed instructions such as teacher-created lesson plans and duties related to the supervision of students and the daily operations of the school. Assignments that meet the definition of a daily substitute assignment will be compensated at the daily rate of pay as determined by the LCPS School Board.
 - (i) Eligible Positions. Positions eligible for daily substitutes include licensed teachers, itinerant teachers, reading specialists, media specialists, teacher assistants, behavioral assistants, health clinic specialists, administrative assistants, and other positions approved by the Level Director or the Chief of Schools. Part-time, hourly, or temporary employees (e.g., cafeteria monitors or part-time elementary administrative assistants) are not authorized for substitute assignments. However, part-time employees who receive a contract, or assignment letter may be eligible.
 - (ii) Unauthorized Use. Substitutes are not authorized for additional coverage for field days, non-Standards of Learning (SOL) testing, after-school events, parent nights, field trips, or other co-curricular events unless there is an associated staff absence. Substitutes are not authorized for Advanced Placement testing. Substitutes are permissible for teachers administering SOL assessments.
- b. Long-Term Substitute Assignments. Substitute assignments that exceed ten (10) consecutive working days in length for the same employee. The duties of the long-term substitute may include the planning, assessment, instruction, communication, and safety management of the classroom or instructional setting. Assignments that meet the definition of a long-term assignment will be compensated at the long-term rate of pay as determined by the School Board.
 - (i) Eligible Positions. Positions eligible for long-term substitutes include full-time and itinerant staff in the following positions: school administrators, counselors, financial technicians, and

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licensed teaching positions for teachers who work with students directly in a small or whole group classroom setting.

- c. Multiple Day Substitute Assignments. Substitute assignments that exceed ten (10) consecutive working days for the same employee whose position does not qualify for a long-term substitute assignment pay rate.
 - (i) Eligible Positions. Positions eligible for multiple-day assignments include teacher assistants, behavioral assistants, administrative assistants, registered nurses, health clinic specialists, and any other assistant or support position approved by the Level Director or Chief of Schools.
- d. Site-Based Substitute Assignments. Substitutes that are utilized by school staff to serve in licensed and non-exempt positions that serve to fill open short-term substitute positions. Site-based substitutes are responsible for implementing teacher-created lesson plans and duties related to the supervision of students and the daily operations of the school. Site-based substitutes are assigned to a single school location and are expected to report daily. Assignments that meet the definition of a site-based substitute will be compensated at the site-based substitute pay rate as determined by the LCPS School Board.
- e. Other Substitutes. Positions not otherwise identified in this regulation may qualify for substitute positions but require prior written Level Director approval before starting the substitute assignment. Limitations on a substitute assignment's work hours and responsibilities may apply.

3. Substitute Compensation.

- a. Daily Compensation. Hours worked are recorded in the substitute management system. The rate of compensation is determined and approved by the LCPS School Board. Payment of substitutes occurs on a bi-weekly schedule.
- b. Loyalty Rate. An enhanced pay rate that applies to substitutes who work for more than 25 days in any teaching position. The Loyalty Rate will be applied on the 26th day and will be in effect for all remaining days worked during the school year in which the loyalty rate was earned. Substitutes eligible to receive the loyalty rate include those filling the following positions: licensed teachers,

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itinerant teachers, reading specialists, media specialists, teacher assistants, behavioral assistants, health clinic specialists, administrative assistants, and any other position approved by the Level Director or the Chief of Schools. The loyalty rate does not apply to substitutes serving as counselors, nurses, site-based, or any long-term substitute assignment.

- c. High Volume Days. Specific days are identified by the Department of Human Resources and Talent Development (HRTD), based on historical data, where there is a higher demand for substitutes. Any substitute that works on a High Volume Day will earn an increased daily rate to be determined and approved by the LCPS School Board. All substitute positions are eligible for the high volume rate.

4. Long-Term Substitute Assignments.

- a. Eligibility and Approval. Long-term substitute positions are available only to currently employed LCPS substitutes. Long-term substitute assignments are selected and approved by school-based administrators and submitted to the office within HRTD that oversees substitutes, which enters the position into the substitute management system.
- b. Responsibilities and Expectations. Long-term substitutes may be responsible for the planning, delivery of instruction, communication with families, assessment, classroom management, along with other assigned responsibilities. Long-term substitutes are eligible for compensation on scheduled Teacher Work Days but are not eligible to be compensated for attending scheduled professional development days.
- c. Allowable (Permissible) Uses.
 - (i) All long-term substitutes hired for Long-Term Substitute Assignments that begin at the start of a school year may begin their assignment no sooner than five working days before the first student day, provided they have obtained written approval from their supervisor.
 - (ii) Long-Term Substitute Assignments for administrators (principals, assistant principals and deans) require Level Director approval. Long-Term Principals require an interim assignment.

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- (iii) School counselor and administrator substitutes may continue their assignments for up to 5 workdays after students leave for the end of the school year.
- (iv) A maximum of two overlap working days are allowed between a long-term substitute and the employee. All exceptions require approval from the office within HRTD that oversees substitutes.

5. Site-Based Substitute Assignments.

- a. Allotment. Site-based substitutes are generally allotted using a 25:1 ratio based on the number of teachers per school. Site-based substitute allotments are evaluated and reassigned each year. Additional site-based substitutes may be allotted pending the relevant Director's approval.
- b. School site-based substitutes are submitted to the Substitute office of HRTD, which maintains a list of all site-based substitutes throughout the Division. It is the expectation that site-based substitutes are placed in unfilled licensed teacher, teacher assistant, or administrative assistant positions at a school.
- c. Site-based substitutes are responsible for implementing teacher-created lesson plans and instructional activities. Site-based substitutes are not additional full-time employees (FTEs) and should not be assigned to a support-type position, i.e., hallway monitor, cafeteria monitor, testing support, health clinic support, etc. If all substitute jobs are filled at a school on a particular day, the site-based substitutes may be utilized for additional support.

D. Off-Contract Temporary Assignments.

- 1. Summer Office Substitutes. Substitutes for summer administrative assistant office positions, which require prior approval from the appropriate Department of School Leadership Director(s).
- 2. Summer Program Substitutes. Substitutes that fill in for scheduled staff employed during Extended School Year or any other summer program. These substitutes are screened and approved by HRTD and managed by the ESY coordinators.

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3. Other Off-Contract Temporary Assignments. Employees approved by HRTD who work an assignment on a non-contract day, requiring a secondary assignment and prior approval from the appropriate department.

4. Hours worked must be entered on an employee timecard using the determined and approved banded rate.

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Legal Refs: Code of Virginia §§ [22.1-70](#), [22.1-78](#), [22.1-299](#), [22.1-302](#), and [8VAC20-460-30](#).